Syllabus

HAMM, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS *v.* SMITH

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT

No. 24–872. Argued December 10, 2025—Decided May 21, 2026

Certiorari dismissed.

Robert M. Overing, Principal Deputy Solicitor General of Alabama, argued the cause for petitioner. With him on the briefs were *Steve Marshall*, Attorney General of Alabama, *Edmund G. LaCour, Jr.*, Solicitor General, *Dylan Mauldin*, Assistant Solicitor General, and *Benjamin M. Seiss*, Assistant Attorney General.

Harry S. Graver argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Sauer*, *Acting Assistant Attorney General Galeotti*, *Deputy Solicitor General Mooppan*, and *Ann O'Connell Adams*.

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Seth P. Waxman argued the cause for respondent. With him on the brief were *Allison M. Schultz*, *Anneke F. Dunbar-Gronke*, *Zaki Anwar*, *Kacey L. Keeton*, and *Alan E. Schoenfeld*.*

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*Briefs of *amici curiae* urging reversal were filed for the State of Idaho et al. by *Raúl R. Labrador*, Attorney General of Idaho, *Alan M. Hurst*, Solicitor General, *Michael A. Zarian*, Deputy Solicitor General, and *Gader Wren*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Theodore E. Rokita* of Indiana, *Kris Kobach* of Kansas, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Andrew Bailey* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew H. Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, and *Derek Brown* of Utah, and by *Rusty D. Crandell* and *Linley Wilson*; for the Commonwealth of Kentucky by *Russell Coleman*, Attorney General of Kentucky, *Matthew F. Kuhn*, Solicitor General, *John H. Heyburn*, Principal Deputy